



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

*** Excerpts from the Minutes of the 38th Regular Session of the 10th City Council of Valenzuela held on May 20, 2026 at 4:08 P.M. at the City Council's Session Hall, 3rd Floor, Legislative Building, Valenzuela City Hall, Karuhatan, Valenzuela City, Metropolitan Manila

ORDINANCE NO. 1356

Series of 2026

AN ORDINANCE AMENDING AND CREATING A NEW SECTION 16-A OF ORDINANCE NO. 369, SERIES OF 2017, ENTITLED "VC CARES PLUS ORDINANCE", FOR PURPOSES OF INSTITUTIONALIZING GUIDELINES ON DRUG-FREE PROGRAMS AND POLICIES OF BARANGAYS SITUATED WITHIN THE TERRITORIAL JURISDICTION OF VALENZUELA CITY, AND FOR OTHER PURPOSES.

Authored by Coun. **WALTER MAGNUM D. DELA CRUZ**

WHEREAS, on 30 September 2019, the Sangguniang Panglungsod enacted Ordinance No. 369, Series of 2017 shortly entitled *VC Cares Plus Ordinance*, which provided a comprehensive anti-drug abuse program to be adopted by local government units and private institutions within Valenzuela City;

WHEREAS, a number of circulars and department orders have been subsequently issued by the Department of Interior and Local Government and Department of Health to which there is a need to align the provisions of the *VC Cares Plus Ordinance*;

WHEREAS, there is a need to further amend the *VC Cares Plus Ordinance* to institutionalize the anti-drug abuse programs and drug-free workplace policies of barangays within the territorial jurisdiction of Valenzuela City, in line with prevailing National Government issuances and circulars;

NOW THEREFORE, be it **ORDAINED** as it is hereby **ORDAINED** by the 10th City Council of Valenzuela, in session duly assembled, that:

SECTION 1. DRUG TESTING AND LABORATORY SERVICES – A new Section 16-A is hereby created and shall form an integral part of Ordinance No. 369, Series of 2017, which shall be read as follows:

[Handwritten signatures in blue ink]



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"Section 16-A. Barangay Drug-free Workplace Program.

A. Barangay Drug-free Workplace Ordinance - All Barangays within the territorial jurisdiction of Valenzuela City shall each enact an ordinance establishing a drug-free workplace policy, which shall include the following provisions, among others:

- a. Develop and implement policies, programs, and activities for the drug free workplace program, aligned with the Healthy Workplace Framework of the Department of Health;
- b. Conduct of mandatory pre-employment drug testing, which shall remain a requirement for initial entry to government service and mandating that any applicant found positive for drug use shall be denied entry to government service;
- c. Conduct and support campaigns and other related social mobilization activities for both public and private workplaces regarding medical and social risks associated with drug use and administrative and criminal sanctions for violations of Republic Act No. 9165, or any other related national law;
- d. Monitoring the implementation of health promotion intervention programs in the workplace setting; and
- e. Duty to maintain a drug-free workplace through conduct mandatory drug testing at least once every calendar year.

Provided, however, that any and all drug tests conducted by Barangays under their respective drug-free workplace programs must be conducted by and with the supervision of the Valenzuela City Treatment and Rehabilitation Center for Drug Dependents, also known as the Balai Banyuhay, in accordance with Ordinance No. 603, Series of 2019 and any and all amendments thereto.

Any and all drug tests conducted without the supervision of Balai Banyuhay, as mandated in the immediately preceding paragraph, shall be null and void, and cannot be used for applications for drug-free workplace declaration with the Valenzuela



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Anti-Drug Abuse Office and/or Department of Interior and Local Government.

Provided, further, in the event that Balai Banyuhay is operationally incapable of conducting the required drug testing requested by the Barangay within six (6) calendar months, it shall issue a *Certification* to that effect, and such *Certification* shall serve as an authority for the Barangay to avail of the services of other drug testing centers duly accredited by the Department of Health.

B. Guidelines in the Conduct of Authorized Drug Testing – All drug tests conducted by virtue of the Barangay Drug-Free Workplace Policy shall be subject to the following guidelines:

- a. All drug test results shall be strictly confidential in accordance with Republic Act No. 10173, otherwise known as the *Data Privacy Act of 2012*. Only the Valenzuela Anti-Drug Abuse Office, Department of Interior and Local Government, Punong Barangay, and the Chairman of the Barangay Committee on Peace and Order shall have access to the results;
- b. In case of a negative drug test result, no further action is needed. However, a positive drug test result from the confirmatory test shall immediately be known to the Punong Barangay who, in turn shall notify the public officer/employee concerned;
- c. The public officer shall have fifteen (15) calendar days from receipt of notice to challenge the confirmatory test result using the same specimen. The challenge test must be conducted by a drug testing laboratory accredited by the Department of Health. All expenses incurred in the conduct of the challenge test shall be borne by the concerned public officer/employee;
- d. Any employee, appointive or elective public officer who refuses, without any valid reason, to submit him/herself to authorized drug testing or is found positive for drug use after the conduct of a confirmatory



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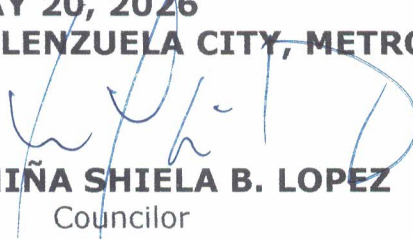
test in an authorized drug testing activity shall be charged with the administrative offense of Grave Misconduct pursuant to Section 60 of the Local Government Code and Article 124 (3) of the Implementing Rules and Regulations of the Local Government Code; and

- e. Any public officer or employee found to have tampered with the result of a drug test, interfered with the conduct of the drug test or in the release of drug test results, or violated rules of confidentiality of records shall be charged in accordance with the provisions of Republic Act No. 9165, otherwise known as the Comprehensive Dangerous Drugs Act of 2002 and/or Grave Misconduct pursuant to Section 60 of the Local Government Code and Article 124 (3) of the Implementing Rules and Regulations of the Local Government Code."

SECTION 2. SEPARABILITY CLAUSE – Should any provision in this Ordinance, or application of such provision to any circumstance, is declared invalid or unconstitutional, the other provisions not affected thereby shall remain valid and subsisting.

SECTION 3. EFFECTIVITY CLAUSE — This Ordinance shall take effect on the day following its publication as required under the Local Government Code.

ENACTED.
MAY 20, 2026
VALENZUELA CITY, METROPOLITAN MANILA.


HON. NIÑA SHIELA B. LOPEZ
Councilor
Majority Floor Leader


HON. JOSEPH WILLIAM D. LEE
Councilor
Minority Floor Leader


HON. WALTER MAGNUM D. DELA CRUZ
Councilor
Asst. Majority Floor Leader


HON. LOUIE P. NOLASCO
Councilor
Asst. Minority Floor Leader





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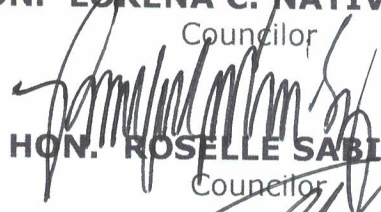
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HON. CRISTINA MARIE FELICIANO-TAN
Councilor


HON. LORENA C. NATIVIDAD-BORJA
Councilor


HON. RICHARD C. ENRIQUEZ
Councilor


HON. ROSELLE SABINO-SY
Councilor


HON. KISHA COLEEN R. ANCHETA
Councilor


HON. CHIQUIT MARIE N. CARREON
Councilor

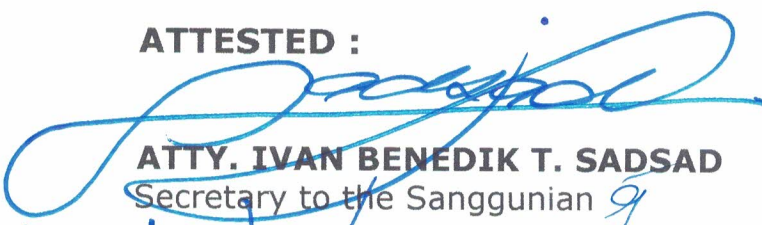

HON. EXEQUIEL D. SERRANO
Councilor


HON. CHRISTOFFER JOSEPH M. PINEDA
Councilor

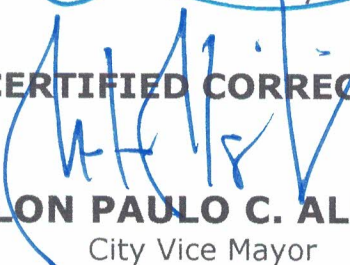

HON. MARIO B. SAN ANDRES
Councilor
(President, League of Barangays)


HON. JAIRUS JEOFRI P. ESPLANA
Councilor
(President, Sangguniang Kabataan Federation)

ATTESTED :


ATTY. IVAN BENEDIK T. SADSAD
Secretary to the Sanggunian

CERTIFIED CORRECT:


HON. MARLON PAULO C. ALEJANDRINO
City Vice Mayor
Presiding Officer

APPROVED:


HON. WESLIE T. GATCHALIAN
City Mayor
Date signed : 05 JUN 2026 